FILL OUT ALL SECTIONS OF THIS FORM BEFORE FILING WITH THE COUNTY CLERK AND FIDUCIARY CLERK/COURT – MUST BE COMPLETED WITHIN 30 DAYS OF SALE

If this is an E-Filed case, upload this form to NYSCEF as a "Foreclosure Action Surplus Monies Form"

FORECLOSURE ACTION SURPLUS MONIES FORM

SUPREME COURT/COUNTY COURT OF THE STATE OF NEW YORK:

COUNTY OF KINGS

SACHEM CAPITAL CORP.

Index No. 515764/2023

Plaintiff,

-against-

273 E 40th, LLC, MARK ADENIJI, AS PERSONAL GUARANTOR,

Defendant.

MORTGAGED PROPERTY:
273 E 40th Street
Brooklyn, New York 11203

COUNTY: KINGS
SBL #: 4894.55
Sale Date: January 29, 2026

A. To be completed by the Referee

1. Final Judgment Amount per Judgment: $ 584,470.84
2. Adjusted Judgment Amount (Upset Price): $ _____
   (This is the total amount due to the bank after post-sale disbursements, fees, taxes, utilities, etc.)
3. Sale Price: $ 315,100.
   (To calculate if there is a surplus, subtract the higher of line 1 or line 2 from line 3 and enter any surplus on line 4)
4. Surplus Amount (enter $0.00 if no surplus) $ 0.
   ***If there are surplus funds, attach proof/receipt that the surplus amount was deposited with the Treasurer, Comptroller, Commissioner of Finance, Clerk of Court, etc.*

Referee's TOTAL compensation awarded/fees earned in this matter: $ 1100.

Referee Name: Michael Benjamin, Esq. Telephone: 718-810-2929
Address: 2429 East 71st Street, Brooklyn, NY 11234
Email: michaelb152@aol.com Signature/Date: 1.29.26

**If plaintiff is also the purchaser, complete both B. and C.*

B. To be completed by Plaintiff's Rep.

Name: Brendan Dakin
Address: 477 Madison Avenue
Suite 410, New York, NY 10022
Telephone: 212-524-5000
Email: brendan.dakin@rivkin.com
Signature/Date: Brendan Dakin

C. To Be Completed by Purchaser

Name: MICHAEL SLAY
Address: P.O. BOX 180-332
BULLYN NY 11218
Telephone: 347-495-3498
Email: 238FLATBUSH@GMAIL.COM
Signature/ Date:

Additional Copies of this Form can be found at https://www.nycourts.gov/forms/foreclosure/

Rev. 12/19